

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 30, 2026
8:30 AM/1:30 PM

17. MATILDE RIOS V. SANTOS RIOS

25FL0977

Petitioner filed a Request for Order (RFO) seeking spousal support, property control, as well as Family Code section 2030 attorney's fees. Petitioner did not file an Income and Expense Declaration. There is no Proof of Service showing that Respondent was properly served.

The court drops the matter from calendar due to the lack of proper service.

TENTATIVE RULING #17: THE MATTER IS DROPPED FROM CALENDAR DUE TO THE LACK OF PROPER SERVICE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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18. CHELSEY ROMERO V. ROBERT ROMERO

PFL20190274

Respondent filed a Request for Order (RFO) on November 6, 2025, requesting to augment the current orders. Petitioner was mail served on November 6th. There is no Proof of Service showing the Department of Child Support Services (DCSS), who is a party to the case, was properly served. Additionally, this is a post-judgment request for modification and as such compliance with Family Code section 215 is required.

Respondent appeared at the hearing on January 15, 2026 and requested the matter be continued to allow time for proper service. The court granted the request to continue and set the matter for a further hearing on March 12, 2026.

On March 12, 2026, Respondent again appeared for the hearing and requested the matter be continued to allow additional time to perfect service. The court granted the request and continued the matter to the present date.

Proof of Service shows Petitioner was mail served in Nevada on April 9, 2026. Civil Procedure section 1005(b) states: "Unless otherwise ordered or specifically provided by law, all moving and supporting papers shall be served and filed at least 16 court days before the hearing. The moving and supporting papers served shall be a copy of the papers filed or to be filed with the court. However, if the notice is served by mail, the required 16-day period of notice before the hearing shall be increased by five calendar days if the place of mailing and the place of address are within the State of California and 10 calendar days if either the place of mail or the place of address is outside the State of California..." This would have made March 29, 2026, the last day for mail service.

Proof of Service shows DCSS was mail served on April 9, 2026. The court finds this to be late service as well. As set forth above, the last day for mail service within the State of California would have been April 3, 2026.

Neither Petitioner nor DCSS have filed Responsive Declarations.

The court drops Respondent's November 6th filed RFO due to the lack of proper service.

Petitioner filed an RFO on February 26, 2026. Upon review of the court file, there is no Proof of Service showing either Respondent or DCSS were properly served. As such, the court drops the matter from calendar.